



Amp Academy — Partnership MOU (DRAFT)

Founders' term sheet for counsel · reviewed 2026-06-21

Reviewed 2026-06-21 (Michael). Structure approved as the founders' term sheet to circulate. The bracketed items — entity type/state (§2), roles (§1/§7), equity split (§5), license trigger (§4), distributions (§8), governance (§9) — are **intentionally left open**: they are decided **with Repasch & Longley in the founders' meeting**, then handed to counsel. Michael's tech/platform veto + the license-reverts-on-dissolution spine stand.

A **non-binding term sheet** capturing the intent of the three founders, **prepared for an attorney to convert into a binding Partnership or LLC Operating Agreement**. ⚠ **NOT LEGAL ADVICE**. Claude Gaude / "Esther" is not a lawyer; nothing here is final or enforceable until counsel drafts and all parties sign. Bracketed [] items are decisions for the founders + attorney. Scope: **Amp Academy only — not LUKAS_APPS**.

1 · Parties (the founders)

- **Michael "Stagger Lee" Lukas** — founder; technology, product, build.
- **Jim Repasch** — [role: e.g., institutional / education partnerships].
- **[First] Longley** — [role: e.g., SME / sales / operations].

2 · Purpose & entity

Form **Amp Academy** as a **[Partnership / LLC — counsel to recommend; LLC likely for liability]** to develop, deliver, and sell electrician education (courses, tools, institutional programs). State of formation: [].

3 · Scope — Amp Academy ONLY

This venture is **Amp Academy alone**. It does **not** include any other LUKAS_APPS product (Trailgummy, Triple Crown, Ford-Falcon-Friends, The Dealer, dead_dance, PostMind, etc.), and the founders other than Michael acquire **no interest** in those or in LUKAS_APPS itself.

4 · Technology license (the spine)

Amp Academy **licenses** the underlying platform technology from **LUKAS_APPS** (owner: Michael Lukas) — the calculation engine, course/player platform, design system, tutor relay, and the **edex** backend. Per **AA_IP_AND_LICENSING_STRUCTURE_2026-06-20** : - **Today: royalty-free (\$0)** while the venture is pre-revenue. - **Converts to a paid license** when AA revenue flows — **[fee/royalty %, trigger]** TBD by founders + counsel. - Non-exclusive, perpetual-while-in-good-standing; LUKAS_APPS retains ownership and may license the tech elsewhere.

5 · Ownership / equity

- **Headline (locked 2026-06-21): Michael 65% · Repasch 16% · Longley 16% · Jimmy Christmas 3%** (core). Contingent strategic grants from **Michael's share: Mike Holt 10%** (if CCO), **Perry 3%** (advisory) → fully loaded **Michael 52 · Repasch 16 · Longley 16 · Holt 10 · Jimmy 3 · Perry 3. Michael retains majority control (≥51%) even fully loaded** — non-negotiable. (*Set so Repasch & Longley each net ~\$1M at a ~\$6.25M exit while Michael keeps control — see business plan §9.*)
- Consider Michael's contributed **technology license** + IP as part of his contribution alongside the others' contributions (capital / sales / SME / time). [Counsel: contribution-vs-equity treatment.]
- **Vesting:** [e.g., 4-year vest, 1-year cliff] so equity tracks ongoing contribution.

6 · What Amp Academy owns

Its **course content** (authored curriculum, lessons, assessments), the **Amp Academy brand/trademark** (pending clearance), its **customer/institution relationships**, and its **revenue**. Not the platform tech (that's licensed, §4). Student data (edex) is processed for institutions under FERPA/DPA — held, not "owned."

7 · Roles & contributions (fill in)

Founder	Primary role	Contribution (capital / time / IP / relationships)
Michael	Tech, product, build	Platform tech license; engineering
Repasch	[]	[]

Founder	Primary role	Contribution (capital / time / IP / relationships)
Longley	[]	[]

8 • Revenue & distributions

- Revenue sources: course sales, institutional/per-cohort licensing, subscriptions (estimators).
- Distributions: after expenses + the LUKAS_APPS license fee (once active) + a reserve, split **pro-rata to equity** (or [] per founders). [Counsel + CPA: tax treatment, draws, K-1s.]

9 • Governance

Decisions by [majority / unanimous for major items]; define "major" (debt, new members, sale, IP, >\$[] spend). Michael holds [] on technology/platform decisions; the venture holds business decisions.

9a • Control & transfer of interests (added 2026-06-21)

- **Michael Lukas is the principal / controlling member.**
- **Vesting (all members, same rules):** starts month 1; **nothing exercisable before month 13** (12-month cliff); **leave before month 13 = total forfeiture.** Conditional on performance (working, pursuing deals, generating revenue, hitting defined goals); full vest over **3 years. Jimmy Christmas: up to 3%** on this schedule.
- **Right of first refusal:** any transfer of a membership interest must be offered **back to the company first, then the founders pro-rata**, before any outside party — so the founders control who the partners are.
- **Leaver:** after month 13, keep **vested**, forfeit **unvested** (returns to pool); company/founders hold a **buy-back** at fair value (good leaver) / lower-of-cost-or-FMV (bad leaver). [Counsel drafts buy-sell + valuation.]

10 • Departure / dissolution

Buy-sell terms, valuation method, what happens to the brand + content + the tech license if a founder leaves or the venture dissolves (the tech license **reverts** to LUKAS_APPS). [Counsel — see §9a for the agreed spine.]

11 • Confidentiality & non-compete

Mutual confidentiality; [non-compete scope/term per state law]. ECC/Perry is a **separate** agreement (don't conflate).

12 • Hard gates before this binds / before money flows

- **Attorney** drafts the binding agreement; all sign. This MOU is intent only.
- **No revenue / no student PII** until: counsel clears the **edex FERPA/DPA** terms and the **trademark knockouts** (Amp Academy™); CPA on tax. (See the consolidated legal package.)
- The ECC **Perry MOU** stays separate.

13 • Signatures (on the binding agreement, not this draft)

Michael Lukas _ · Jim Repasch _ · [First] Longley __ · Date ____

Reminder: This is a founders' term sheet for discussion, prepared for your attorney — **not legal advice and not binding**. Take it to counsel to draft the real Partnership/LLC agreement. Filed with `AA_IP_AND_LICENSING_STRUCTURE_2026-06-20` and the consolidated legal package.